

STATE OF NEW YORK

3404--A

Cal. No. 39

2025-2026 Regular Sessions

IN ASSEMBLY

January 27, 2025

Introduced by M. of A. LAVINE, SAYEGH, BURDICK, STECK, LUNSFORD, CONRAD, SHIMSKY, HEVESI, TAPIA, GANDOLFO, SANTABARBARA, SEAWRIGHT, KASSAY, GRIFFIN -- read once and referred to the Committee on Health -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the public health law, in relation to treatment of deaf, hard of hearing and nonverbal individuals during admission to a hospital

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 2805-r of the public health law, as added by chapter 451 of the laws of 2005, is amended to read as follows:

§ 2805-r. Patients unable to hear or verbally communicate. 1. The department shall make regulations concerning the treatment of general hospital patients who are unable to hear or verbally communicate, for whatever reason, with a health care practitioner or aide.

2. Such regulations shall establish standards for a deaf, hard of hearing or nonverbal patient to have present during ~~[his or her]~~ their period of admission a parent, guardian, representative, interpreter or authorized helper to assist in the communication with health care personnel. Such person shall be permitted to remain with the patient for interpretation until a hospital-provided qualified interpreter, or other qualified person is assigned to the patient.

3. The standards established under this section shall be incorporated into the statement of rights and responsibilities adopted pursuant to paragraph (g) of subdivision one of section twenty-eight hundred three of this article.

§ 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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